

Amendment No. 1 to HB0398

Terry
Signature of Sponsor

AMEND Senate Bill No. 343*

House Bill No. 398

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 3, Part 5, is amended by adding the following as a new section:

(a) A paramedic, licensed pursuant to § 68-140-306, may make an actual determination and pronouncement of death if the paramedic has successfully completed training in the determination and pronouncement of death and the paramedic has attempted to resuscitate the person in accordance with standards established by the emergency medical services board.

(b) This section does not permit a paramedic to make the actual determination and pronouncement of death of a patient who is in a hospital when the apparent death occurs.

(c) This section does not preclude a physician licensed pursuant to title 63, chapter 6 or 9, from directing a paramedic to cease resuscitative efforts.

SECTION 2. Tennessee Code Annotated, Title 68, Chapter 140, Part 3, is amended by adding the following as a new section:

(a) A paramedic who intends to determine and pronounce death shall, before doing so, complete a course of instruction in determining and pronouncing death.

(b) A paramedic who determines and pronounces death shall retain proof of successful completion of the course required by subsection (a) and make the proof readily available to the board or the board's designee upon request.

(c) A paramedic who fails to comply with the standards for determining and pronouncing death set forth in this part or rules of the board may be subject to discipline by the board.

SECTION 3. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2027, the public welfare requiring it.